

Dinesh Kumar Agarwal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 15 February 2017 · WRIT - C No. 7086 of 2017 · **Writ disposed; petitioner relegated to apply for new connection.**

HEADNOTE

Mandamus for a new electricity connection will not issue where the occupier has not applied in the prescribed format under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005. Liberty was given to apply after fulfilling the Code's prerequisites; the distribution licensee is then expected to consider the application within the Code's time frame and in accordance with law.

FACTUAL SUMMARY

Dinesh Kumar Agarwal, claiming to be a tenant of the erstwhile owner, alleged that the electricity connection in the landlord's name had been illegally disconnected. He sought a writ directing the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Limited, Mathura, to grant a new connection in his own name. He had not applied in the prescribed format under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005, and had come straight to the High Court.

HOLDING-UNITS

INTERPLAY · UP-2005::4

new-connection-application

HOLDING

A writ directing grant of a new electricity connection is not maintainable where the petitioner has not applied in the prescribed format under the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005, and has come straight to the High Court. If he thereafter applies after fulfilling every prerequisite formality, the Executive Engineer is expected to consider and redress the grievance within the time frame provided in the Code and in accordance with law. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy Mandamus for a new electricity connection will not issue where the occupier has not applied in the prescribed format under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE LANDLORD'S CONNECTION WAS ILLEGALLY DISCONNECTED

The Court did not examine the disconnection on merits; the petitioner was relegated to a prescribed new-connection application. ¶ 1

NOT DECIDED — TENANT'S ENTITLEMENT TO A NEW CONNECTION IN HIS OWN NAME

No finding on whether a connection should be released; any application is to be considered in accordance with law. ¶ 1